

FL.2 Permit Application Checklist

What to gather before you file, which numbers the plan reviewer will look for, and how long they have to answer.

Before you use this document

This is a process reference, not legal advice. Florida is the opposite of a no-permit state: one building code binds every parcel in all 67 counties, every jurisdiction permits and inspects, and a local government may not simply write its own residential code. What still varies is the part that costs you money and weeks — fees, impact fees, review queues, portals, and which *additional* permits your particular lot triggers before the building department will act. Confirm every item with the office that will actually handle your parcel before you rely on it.

WHAT IS IN FORCE RIGHT NOW

Florida runs one building code statewide, updated on a three-year cycle. Your project is reviewed against the edition in force, so the first thing to establish is which edition that is.

Code editions in force in Florida, effective 31 December 2023

Code	Edition	Notes
Florida Building Code, Residential	8th Edition (2023), based on the 2021 IRC	Detached one- and two-family dwellings and townhouses not more than three stories, plus accessory structures
Florida Building Code, Energy Conservation	8th Edition (2023), based on the 2021 IECC	All of Florida is a hot-humid climate zone; the performance path was tightened 5% in this edition
Electrical (NFPA 70, the NEC)	Read the note below — the 8th Edition as adopted referenced the 2020 NEC, and the Commission has since updated the referenced standard to the 2023 NEC	Adopted through the code rather than as a separate state electrical code
Plumbing, Mechanical, Fuel Gas, Existing Building	8th Edition (2023)	Separate volumes of the same code
Test Protocols for HVHZ	8th Edition (2023)	Its own volume — applies in Miami-Dade and Broward
Wind	ASCE 7-22	Updated from ASCE 7-16 in this edition. Speeds are unchanged for most of Florida; some panhandle areas increased

Effective date and edition from the Florida Building Commission's own portal at floridabuilding.org; base I-Code years and the ASCE 7-22 change from the Commission's published *Analysis of Changes for the 8th Edition*. Read September 2026.

Two moving targets worth checking on the day you file

The 9th Edition (2026). The Commission's own code menu lists it as a *Draft*, and a public comment period was still running in late 2026. No effective date has been published. Any guide that gives you one is guessing — but the edition that governs you is set when you apply, so check floridabuilding.org before you file a borderline project.

Which NEC edition applies. This one causes real confusion. The 8th Edition as originally adopted pointed at the 2020 NEC; the Commission has since revised the referenced standard to the **2023 NEC**, using a fast-track power the Legislature gave it specifically for the electrical code (s. 553.73(8)(a)6.). That is why you will find both answers in print, and both are defensible citations to different documents. **Ask your electrical plan reviewer which edition your permit is reviewed against** and write it down — it changes receptacle, GFCI and surge-protection requirements.

HOW MUCH YOUR COUNTY CAN CHANGE (VERY LITTLE)

In most states this kit covers, the local jurisdiction is the wild card. In Florida it is close to fixed. A local government may amend the *administrative* provisions of the code, and may adopt *technical* amendments only if they are **more stringent**, no more often than once every six months, after an advertised public hearing, on evidence of a specific local need — and the amendment must not introduce a subject the code does not address.

Then the part worth knowing: a local technical amendment “is effective only until the adoption of the new edition of the Florida Building Code by the commission every third year,” at which point the Commission either adopts it statewide or rescinds it (s. 553.73(4)(e)). Local amendments **expire on the code cycle**. Two carve-outs matter to you: provisions on wind resistance and water intrusion may never be weakened (s. 553.73(7)(f)), and **flood** amendments follow a separate, easier track and do not necessarily sunset (s. 553.73(5)).

Practical translation: expect the same technical code everywhere in Florida, and expect your genuine local variation to be about flood elevation, fees and process rather than construction standards.

PRODUCT APPROVAL — THE ONE THAT SURPRISES PEOPLE

Florida approves building products at the state level, and the approval attaches to the product, not to your project. Section 553.842(5) lists the categories that **must** be approved before use in construction in this state:

The eight categories, in the statute's own words

“panel walls, exterior doors, roofing, skylights, windows, shutters, impact protective systems, and structural components” (s. 553.842(5), Fla. Stat.)

Each approved product carries a **Florida approval number**, written as FL followed by digits, and you look it up free at the Commission's product search:

floridabuilding.org/pr/pr_app_srch.aspx. At plan review you will be asked to identify the approval number for every exterior opening and covered product. Most building departments have their own schedule or spreadsheet for this; the format is local, so **ask for their template before you submit** rather than inventing one.

Two consequences owner-builders discover late. First, this is a **purchasing constraint**: a window with no Florida approval cannot be permitted here no matter how good it is, so check the number before you order, not after it arrives. Second, the approval is genuinely portable — statewide approval “shall preclude local jurisdictions from requiring further testing, evaluation, or submission of other evidence as a condition of using the product” so long as you use it consistently with its approval (s. 553.842(4)). A building official who wants to refuse an approved product must put the reasons in a signed written report (s. 553.842(9)).

Miami-Dade and Broward: a second vocabulary

The High-Velocity Hurricane Zone is **Broward and Miami-Dade counties**. There you will also meet the Miami-Dade **Notice of Acceptance** (NOA), issued by that county's Product Control Division — which the statute also names as an approved evaluation entity for the statewide system (s. 553.842(8)(a)). The two systems overlap rather than compete, and which one your plan reviewer will accept for a given product is a local question. Ask before you buy. The HVHZ also uses its own Uniform Permit Application for roofing (FBC Building s. 1525).

WIND, AND WHETHER YOU MUST PROTECT YOUR OPENINGS

Your design wind speed is site-specific. The code now expressly permits location-specific speeds from the **ASCE Wind Design Geodatabase**, and the public tool is at **ascehazardtool.org**. This kit prints no county wind-speed table on purpose: the authoritative answer is a lookup for your coordinates, confirmed by your building department at plan review, and a table would only invite you to use the wrong number.

Whether you must protect your openings depends on being inside the **windborne debris region**. The test has two limbs — a proximity to water combined with a design speed at or above 130 mph, or a design speed at or above 140 mph anywhere. The 8th Edition **amended the first limb**, and the Commission's own change notes say the effect is that some inland

parcels near large bodies of water now fall inside the region.

Do not assume inland means exempt

That amendment is the single most likely way for a Florida owner-builder to budget wrong. A lakefront or riverfront lot well away from the coast can sit inside the windborne debris region and require protected openings throughout. Because this kit could not obtain the exact current wording of that definition from a primary source, it will not paraphrase it: **ask your building department to confirm, in writing, whether your parcel is in the windborne debris region** before you price windows.

If you are in the region, every exterior glazed opening must be protected — but **impact glass is not the only route**. The residential code accepts glazing meeting the Large Missile Test of ASTM E1996 and E1886, or TAS 201, 202 and 203, or AAMA 506; garage door glazing has its own standard. It also keeps a specific plywood exception: 7/16-inch wood structural panels, precut and predrilled with permanently installed corrosion-resistant hardware, on buildings with a mean roof height of 33 feet or less where the design speed does not exceed 180 mph. Storage sheds not designed for human habitation and 720 square feet or less are excepted.

FBC Residential R301.2.1.2 and R202; ASCE 7-22 as referenced by the 8th Edition. The plywood option is a real cost lever — confirm it is acceptable for your specific openings with your plan reviewer.

THE ENERGY PAPERWORK, AND THE TEST BEFORE YOUR CO

Florida has three compliance paths and its own forms. There is no single “Form R405 PDF” to download, and Florida does not run on REScheck — the performance path's submittal is the report generated by Commission-approved energy software.

Which energy documents you will file

Path	What you submit
Form R400-2023	Residential Energy Conservation Code Documentation Checklist — the cover sheet referenced across all three paths
Prescriptive (R402)	Form R402-2023 , the equipment requirements and installed-values table, now carrying SEER2 and HSPF2 labeling, with signature lines for preparer, owner and code official
Performance (R405)	A report from Commission-approved software. The 8th Edition tightened this path: maximum total e-Ratio dropped from 1.00 to 0.95
Energy Rating Index (R406)	A third path, based on a HERS-style index

The blower door test is mandatory, and you may not run it yourself

Before your certificate of occupancy, the house has to pass a building air leakage test. The maximum leakage rate in Florida's climate zones is **7 air changes per hour at 50 pascals** — 7 ACH50. The test happens after every pipe, wire and other penetration of the thermal envelope has been sealed.

Two things follow. The test must be performed by an energy auditor or rater, a Class A or B air-conditioning or mechanical contractor, or a third party approved by the code official — **not by you and not self-certified**, so budget for it. And if your house comes in **tighter than 3 ACH50**, the code then requires whole-house mechanical ventilation. Building tight is correct; just know it brings a ventilation obligation with it rather than discovering that at the final inspection.

FBC Energy Conservation R402.4.1.2 and the Commission's own residential air leakage testing fact sheet. A duct leakage test is also standard on new construction; this kit does not print a leakage figure for it because the threshold was not confirmed against the current code book — ask your rater for the number they will test to.

HOW LONG THEY HAVE TO ANSWER — AND WHAT LATE COSTS THEM

This is the most valuable page in the document and almost nobody uses it. Florida puts a statutory clock on residential plan review, and prices the overrun as a discount on your permit fee.

The statutory plan review clock

Stage	The rule	Cite
Is the application complete?	The local government has 5 business days to tell you in writing what is missing. If it does not, your application is automatically deemed complete .	553.792(1)(c)
The review itself	30 business days for a residential permit — including a single-family dwelling — where the structure is under 7,500 square feet . 60 business days at 7,500 square feet or more.	553.792(1)(a)1.-2.
If they run late	The permit fee is reduced by 10% for each business day past the deadline, calculated on the original fee — unless the delay is your fault, mutually agreed, or force majeure.	553.792(1)(e)
If they find deficiencies	A timely, specific written deficiency notice gives you 10 business days to revise; they then get 10 business days to approve or deny. Miss that second window and the penalty rises to 20% per business day .	553.792(1)(f)-(g)

Section 553.792, Fla. Stat. Day counts are BUSINESS days throughout. Date-stamp your submittal and every response — the clock is only useful if you can show when it started.

The other route: hire the review

Section 553.791 lets you retain a **private provider** — a licensed building code administrator, engineer or architect — to do your plan review and inspections instead of the county. Two things make it worth pricing. The local jurisdiction **must** reduce your permit fee by its cost savings, and may not charge inspection fees at all beyond a reasonable administrative fee. And the deadlines tighten sharply: the building official has 20 business days to issue or give written deficiencies — 10 if an engineer or architect sealed the affidavit, and just **5 business days** for a single-trade review on a one- or two-family dwelling — after which the permit is **deemed approved as a matter of law**. Certificates of occupancy run to 2 business days for a one- or two-family dwelling. You must notify the building official in writing, on the Commission's form, at permit application or by 2:00 p.m. two business days before the first inspection.

FEES: WHAT THEY MAY CHARGE, AND THE ONE YOU CANNOT AVOID

This kit prints no county fee schedule, because building permit fees, plan review fees and impact fees are set locally and change. What is statewide is the *rule* about them, and it is unusually favorable to you.

- **Permit fees may only fund code enforcement.** Fees, fines and related investment earnings “may only be used for carrying out the local government's responsibilities in enforcing the Florida Building Code,” and total fee revenue may not exceed the cost of the allowable activities (s. 553.80(7)(a)). An owner or builder holding a valid permit issued for a fee **may bring a civil action** against the local government to enforce that limit.
- **Impact fees are the big number**, and they are separate from your permit fee. They may not be collected earlier than the date the building permit issues (s. 163.31801(4)(e)). Increases are capped: not more than 50% of the current rate, phased over two or four annual increments depending on size, and **not more than once every four years** (s. 163.31801(6)). Water and sewer connection fees are *not* impact fees and are not capped by that section.
- **A fee increase cannot ambush a pending application.** A local government must give **90 days' notice** before a new or increased impact fee takes effect, and new or increased fees “may not apply to current or pending permit applications submitted before the effective date” unless the change reduces what you owe (s. 163.31801(4)(d)). Filing before an announced increase locks in the old rate.
- **Every local government must publish its schedule.** Section 163.31801(13) requires them to report each fee's purpose, the method used to calculate it, and the amount charged per dwelling type — so ask for the published impact fee schedule and budget from it.

THE DOCUMENT SET — WORK THIS WITH A PEN

What to gather before you file

	Item	Date	Notes
☐	Completed building permit application, signed by you in person at the counter		
☐	Owner-builder disclosure statement, signed — plus the separate electrical disclosure if you will do your own wiring (see FL.1)		
☐	Identity verification the county accepts at issuance: driver license copy, notarized signature, or other Which one: _____		
☐	Construction drawings, and a site plan or survey showing the structure, setbacks and elevations		
☐	Product approval schedule — manufacturer, model and FL number for every exterior window, door, skylight, shutter and roofing product (Miami-Dade NOA in the HVHZ) Department's template obtained: _____		
☐	Confirmation in writing of your design wind speed, exposure category, and whether the parcel is in the windborne debris region Vult: _____ In region? _____		
☐	Truss engineering from the manufacturer's engineer, plus a truss placement plan		
☐	Energy compliance: Form R400-2023 checklist plus either Form R402-2023 or an approved-software performance report		
☐	Flood zone determination; if in a special flood hazard area, the elevation documentation your floodplain administrator requires Flood zone: _____ BFE: _____		
☐	Septic construction permit or utility sewer availability, and well permit or water service — see FL.4		
☐	Proof of workers' compensation coverage or exemption, if the county asks for it on the application		

What to gather before you file

	Item	Date	Notes
☐	Notice of Commencement prepared — recorded before work starts, and filed with the building department before the first inspection (see FL.3)		

KEEPING THE PERMIT ALIVE

An owner-builder build runs long, and permits die quietly. The code's administrative chapter sets three clocks worth writing on the wall: an **application** is deemed abandoned **180 days** after filing unless pursued in good faith or a permit issued; a **permit** becomes invalid if work is not commenced within **6 months**, or if work is suspended or abandoned for **6 months**. The rule that saves you is the definition of active progress: **“Work shall be considered to be in active progress when the permit has received an approved inspection within 180 days.”** Get one approved inspection every six months and the permit stays alive.

FBC Building 105.3.2, 105.4.1 and 105.4.1.3. These live in the code's administrative chapter, not in statute, and are among the provisions a local government may amend administratively — confirm yours.

PERMIT RECORD

Fill this in as each permit issues

	Item	Date	Notes
☐	Building permit No.: _____ Issued: _____ Expires: _____		
☐	Electrical permit No.: _____ Issued: _____ Expires: _____		
☐	Plumbing permit No.: _____ Issued: _____ Expires: _____		
☐	Mechanical / HVAC permit No.: _____ Issued: _____ Expires: _____		

Fill this in as each permit issues

	Item	Date	Notes
☐	Roofing permit No.: _____ Issued: _____ Expires: _____		
☐	Septic (OSTDS) construction permit No.: _____ Issued: _____		
☐	Well construction permit No.: _____ Issued: _____		
☐	Driveway / access permit No.: _____ Issued: _____		
☐	Notice of Commencement recorded Book/Page: _____ Recorded: _____		
☐	Application date-stamped (starts the s. 553.792 clock) Date filed: _____ Answer due: _____		

SOURCES**Sources — every Florida claim in this document (verified September 2026)**

What this document states	Authority
Florida Building Code 8th Edition (2023), effective 31 December 2023; Residential based on the 2021 IRC, Energy on the 2021 IECC; wind now on ASCE 7-22	Florida Building Commission, floridabuilding.org
The 9th Edition (2026) is published as a draft with no adopted effective date	floridabuilding.org code menu
The Commission may adopt an updated NEC outside the three-year cycle	s. 553.73(8)(a)6.
Local technical amendments must be more stringent, follow a noticed hearing on evidence of local need, and expire at the next triennial edition; wind and water intrusion provisions may not be weakened; flood amendments follow a separate track	s. 553.73(4)(b), (4)(e), (5), (7)(f)
The eight product categories requiring statewide approval	s. 553.842(5)

Sources — every Florida claim in this document (verified September 2026)

What this document states	Authority
Statewide approval precludes local jurisdictions from requiring further testing or evidence; a building official denying an approved product must issue a signed written report	s. 553.842(4), (9)
Miami-Dade's Product Control Division is a Commission-approved evaluation entity	s. 553.842(8)(a)
The HVHZ is Broward and Miami-Dade counties, with its own Uniform Permit Application for roofing	FBC Building Ch. 2 definitions; FBC Building s. 1525
Opening protection standards and the wood structural panel exception	FBC Residential R301.2.1.2
Maximum building air leakage of 7 ACH50; whole-house mechanical ventilation required below 3 ACH50; who may perform the test	FBC Energy Conservation R402.4.1.2
Residential plan review in 30 business days under 7,500 sq ft; 5 business days to state deficiencies or the application is deemed complete; 10% per business day fee reduction, rising to 20% on a second review	s. 553.792(1)(a), (c), (e), (f)–(g)
Private provider review and inspection, mandatory fee reduction, and the deemed-approved windows	s. 553.791(2)(b), (4), (7)(a), (10), (14)
Permit and application expiration, and the 180-day approved inspection that keeps a permit in active progress	FBC Building 105.3.2, 105.4.1, 105.4.1.3
Building permit fees may fund only code enforcement, with a private right of action to enforce that limit	s. 553.80(7)(a)
Impact fees: collection no earlier than permit issuance, increase caps and frequency limit, 90 days' notice, protection for pending applications, and the duty to publish the schedule	s. 163.31801(4)(d)–(e), (6), (13)

Every source cited in this kit is free to read. A **Fla. Stat.** section is at **flsenate.gov** → Laws → Florida Statutes, or go straight to the section by typing the year and number into the address bar — flsenate.gov/Laws/Statutes/2024/489.103 — which is faster than the search box (chapters used here: **489** contracting, **553** the building code, **713** construction liens, **161** coastal, **373** water). A rule cited as **F.A.C.** is at **flrules.org** → Search → by rule number. The building code itself is at **floridabuilding.org** → Codes, free to read online without an account. **One warning when you check a number:** flsenate.gov keeps every past year's statutes at a nearly identical address, so a search result can hand you a repealed version — check that the year in the URL is the current one before you rely on the text. All text here was read at those sources, September 2026.